

and nothing more is said, the Court will execute the trust in favour of the established form of religion; and dissenters cannot be appointed trustees (*c*). But though the *trustees* of a Church of England school must be members of the Established Church, it does not follow that the children of dissenters are not to be admitted into the *school*, or even that the *master* may not be a dissenter, though the latter appointment could only be justified by peculiar circumstances (*d*). If it be clearly expressed upon the deed or will that the purpose of the settlor is to promote the maintenance of *dissenting* doctrines, the Court, provided such doctrines be not contrary to law, will execute the intention (*e*).

15. **Numerous contributors.** — Where a fund has been raised for the purpose of founding a chapel or any other charity, and the contributors were so numerous as to preclude the possibility of their all concurring in any instrument declaring the trust, and a declaration of trust was made by the persons in whom the property was vested at or about the time when the sums were raised, that declaration may reasonably be taken *primâ facie* as a correct exposition of the minds of the contributors (*f*).

16. **The trust originally intended will be preserved.** — Where an institution exists for the purpose of religious worship, and it cannot be discovered from the instrument declaring the trust what form or species of religious worship was in the intention of the settlors, the Court will then inquire what

(*c*) *Re Stafford Charities*, 25 Beav. 28; *Re Ilminster School*, 2 De G. & J. 535; *S. C. nom. Baker v. Lee*, in D. P. 8 H. L. Cas. 495; *Attorney-General v. Clifton*, 32 Beav. 596.

(*d*) *Attorney-General v. Clifton*, 32 Beav. 596.

(*e*) *Attorney-General v. Pearson*, 3 Mer. 409, *per* Lord Eldon; see S. C. 7 Sim. 290.

(*f*) *Attorney-General v. Clapham*, 4 De G. M. & G. 626.

sively parochial, as a trust for aiding the church-rates (*Doe v. Hiley*, 10 B. & C. 855; *Doe v. Terry*, 4 Ad. & Ell. 274; and see *Allason v. Stark*, 9 Ad. & Ell. 266, 267; *Doe v. Cockell*, 4 Ad. & Ell. 478), or furnishing a poor-house (*Alderman v. Neate*, 4 M. & W. 704), or for the relief of the poor of the parish, whether the objects of the charity be or be not held to include those in the receipt of parochial relief; for if non-recipients only of parochial relief are to be admitted, the parish is still benefited by keeping that class of poor, by means of the charity, off the parish books (*Ex parte Annesley*, 2 Y. & C. 350; *Churchwardens of Deptford v. Sketchley*, 8 Q. B. 394).